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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**(Related: CGC-21-594102;
CGC-25-631801)**

SEPARATE STATEMENT

(Cal. Rules of Court, rule 3.1345)

**RE: UNRESPONDED DISCOVERY —
SETS FOUR AND FIVE**

SEPARATE STATEMENT

Pursuant to California Rules of Court, rule 3.1345, Plaintiff sets forth each discovery request to which no timely response has been served in **CGC-25-631802**. The request text is quoted verbatim from the propounded sets (Sets Four and Five). **Relief requested:** deem admitted; compel verified responses without objection within 10 days; monetary sanctions; reserve CCP §§ 2023.030 and 2033.420.

Response received: None (no response served as of the date of this filing).

SET FOUR — REQUESTS FOR ADMISSION TO CSAA

RFA No. 15

Admit that under California law, strategic delay in the face of clear liability constitutes bad faith. (Richardson v. Employers Liability Assurance Corp. (1972) 25 Cal.App.3d 232.)

Response: None served.

RFA No. 16

Admit that under California law, forcing a claimant through unnecessary litigation when the insurer knows the claim is supported by strong evidence constitutes bad faith.

Response: None served.

RFA No. 17

Admit that once CSAA had or reasonably should have had the 911 recording, BWC footage, and CAD records, liability for the February 4, 2021 collision was at least “reasonably clear” within the meaning of Insurance Code section 790.03, subdivision (h)(5).

Response: None served.

RFA No. 18

Admit that CSAA did not attempt in good faith to effectuate a prompt, fair, and equitable settlement of the plaintiff’s claim after liability became reasonably clear.

Response: None served.

RFA No. 19

Admit that CSAA utilized discovery disputes, motions in limine, or “provenance” arguments to delay or obstruct the plaintiff’s presentation of the 911 recording, BWC footage, or CAD records to the Court.

Response: None served.

RFA No. 20

Admit that CSAA’s litigation posture prolonged the resolution of the plaintiff’s claim significantly beyond the time when liability was reasonably clear.

Response: None served.

1 **RFA No. 21**

2 Admit that violations of the Fair Claims Settlement Practices Regulations (Cal. Code Regs., tit.
3 10, § 2695.7) are admissible as evidence of bad faith. (Yacullo v. AIG Property Casualty Company
4 (S.D. Cal. 2024) 2024 WL 104758.)

5 **Response:** None served.

6 **RFA No. 22**

7 Admit that CSAA did not process the plaintiff's claim within 40 calendar days of receiving proof
8 of claim as required by California Code of Regulations, title 10, section 2695.7, subdivision (b),
9 or did not provide a detailed written explanation of why additional time was reasonably necessary.

10 **Response:** None served.

11 **RFA No. 23**

12 Admit that CSAA's February 25, 2021 denial was not based on "all information reasonably avail-
13 able" within the meaning of California Code of Regulations, title 10, section 2695.7, subdivision
14 (d).

15 **Response:** None served.

16 **RFA No. 24**

17 Admit that CSAA misrepresented a pertinent fact to the plaintiff when it represented that its in-
18 vestigation was "concluded" without having obtained the 911 recording, BWC footage, or CAD
19 records.

20 **Response:** None served.

21 **RFA No. 25**

22 Admit that CSAA failed to adopt or implement reasonable standards for the prompt investigation
23 and processing of claims, within the meaning of Insurance Code section 790.03, subdivision (h)(3).

24 **Response:** None served.

25 **SET FOUR — SPECIAL INTERROGATORIES TO CSAA**

26 **SROG No. 16**

27 State the precise date on which CSAA first determined, or first should have determined, that liabil-
28 ity for the February 4, 2021 collision was "reasonably clear" within the meaning of Insurance Code

1 section 790.03, subdivision (h)(5). Identify all documents and persons supporting your response.

2 **Response:** None served.

3 **SROG No. 17**

4 Identify every settlement offer, demand, or communication regarding settlement between CSAA
5 (or its agents or counsel) and the plaintiff (or his representatives) from February 4, 2021, to the
6 present. For each, state the date, the amount (if any), and CSAA's response.

7 **Response:** None served.

8 **SROG No. 18**

9 Describe every instance in which CSAA or its defense counsel objected to, moved to exclude,
10 or argued against the admission of the 911 recording, BWC footage, or CAD records. For each
11 instance, state the date, the forum, and the specific basis for the objection or argument.

12 **Response:** None served.

13 **SROG No. 19**

14 Identify all CSAA policies, guidelines, manuals, or training materials that address when an insurer
15 must attempt to settle a claim, or how CSAA determines when liability is "reasonably clear."

16 **Response:** None served.

17 **SROG No. 20**

18 If you deny Request for Admission No. 18, describe in detail every good-faith effort CSAA made
19 to effectuate a prompt, fair, and equitable settlement of the plaintiff's claim after obtaining or
20 receiving the 911 recording, BWC footage, or CAD records.

21 **Response:** None served.

22 **SROG No. 21**

23 State whether CSAA processed the plaintiff's claim within 40 calendar days of receiving proof
24 of claim as required by California Code of Regulations, title 10, section 2695.7, subdivision (b).
25 If not, identify the date on which proof of claim was received, the date on which the claim was
26 accepted or denied, and all documents explaining why additional time was needed.

27 **Response:** None served.

1 **SROG No. 22**

2 Identify all documents and evidence CSAA considered “reasonably available” within the meaning
3 of California Code of Regulations, title 10, section 2695.7, subdivision (d), when it issued the
4 February 25, 2021 denial letter.

5 **Response:** None served.

6 **SROG No. 23**

7 Identify all CSAA policies, manuals, or training materials that define when an investigation may
8 be truthfully deemed “concluded” or when a claim may be denied.

9 **Response:** None served.

10 **SROG No. 24**

11 Describe every communication between CSAA and the California Department of Insurance re-
12 garding the plaintiff’s claim, the underlying litigation, or CSAA’s claims-handling practices in
13 third-party bodily injury cases.

14 **Response:** None served.

15 **SROG No. 25**

16 Identify all persons at CSAA responsible for ensuring compliance with California Code of Regu-
17 lations, title 10, section 2695.7, and Insurance Code section 790.03, subdivision (h), in connection
18 with the plaintiff’s claim, and describe the steps each took to ensure compliance.

19 **Response:** None served.

20 **SET FIVE — REQUESTS FOR ADMISSION TO CSAA**

21 **RFA No. 26**

22 Admit that the police report relating to the February 4, 2021 collision is a narrative summary
23 prepared by the responding officer and is not a verbatim record of statements made at the scene by
24 any person.

25 **Response:** None served.

26 **RFA No. 27**

27 Admit that a police report and a 911 audio recording are different categories of evidence, and that
28 a police report does not substitute for or contain the content of the 911 audio recording.

1 **Response:** None served.

2 **RFA No. 28**

3 Admit that the police report relating to the February 4, 2021 collision does not contain the statement
4 “BOOM! I just hit him. HIT HIM. There was barely anything” or any language equivalent to that
5 statement.

6 **Response:** None served.

7 **RFA No. 29**

8 Admit that the police report relating to the February 4, 2021 collision does not contain the statement
9 “He cross from me, and he’s barely hitting anything, but I’m calling for him” or any language
10 equivalent to that statement.

11 **Response:** None served.

12 **RFA No. 30**

13 Admit that the police report relating to the February 4, 2021 collision does not include, reference,
14 or summarize any statement by Subhi Abdelhalim to the 911 operator acknowledging that he struck
15 the pedestrian.

16 **Response:** None served.

17 **RFA No. 31**

18 Admit that a police report and body-worn camera footage are different categories of evidence, and
19 that the police report does not substitute for or contain the content of body-worn camera footage.

20 **Response:** None served.

21 **RFA No. 32**

22 Admit that the police report relating to the February 4, 2021 collision does not include or refer-
23 ence body-worn camera footage in which eyewitness Dustin Rosemond made statements to the
24 responding officer (Officer Thompson) during the scene investigation.

25 **Response:** None served.

26 **RFA No. 33**

27 Admit that the body-worn camera footage of the February 4, 2021 collision was censored or
28 redacted by the San Francisco Police Department before release, and that no verbatim transcript of

1 Dustin Rosemond's statements as captured on that footage is available to Plaintiff.

2 **Response:** None served.

3 **RFA No. 34**

4 Admit that the body-worn camera footage of the February 4, 2021 collision, and the statements
5 made by eyewitness Dustin Rosemond captured thereon during his interaction with Officer Thomp-
6 son, are effectively equivalent to a full statement to the responding officer that he witnessed the
7 collision between the van and the pedestrian, to the effect that the van came around the corner and
8 struck the pedestrian.

9 **Response:** None served.

10 **RFA No. 35**

11 Admit that the police report relating to the February 4, 2021 collision is not a complete record of
12 the law enforcement response to the collision because it does not include the 911 audio recording,
13 the body-worn camera footage, or the computer-aided dispatch records generated during the same
14 response.

15 **Response:** None served.

16 **RFA No. 36**

17 Admit that the police report relating to the February 4, 2021 collision references or contains a CAD
18 (computer-aided dispatch) number.

19 **Response:** None served.

20 **RFA No. 37**

21 Admit that a CAD number is a unique identifier that links to the computer-aided dispatch record,
22 911 call log, and associated law enforcement records for the same incident.

23 **Response:** None served.

24 **RFA No. 38**

25 Admit that a person reviewing the police report would be able to identify the CAD number refer-
26 enced therein and use it to request additional law enforcement records, including 911 audio and
27 dispatch logs, from the San Francisco Police Department or San Francisco Department of Emer-
28 gency Management.

1 **Response:** None served.

2 **RFA No. 39**

3 Admit that as of February 25, 2021, CSAA Insurance Exchange did not use the CAD number
4 on the police report to request or retrieve any additional records from the San Francisco Police
5 Department or San Francisco Department of Emergency Management.

6 **Response:** None served.

7 **RFA No. 40**

8 Admit that CSAA Insurance Exchange's adjusters are trained or instructed that a CAD number on
9 a police report indicates the existence of additional retrievable law enforcement records, including
10 911 audio and dispatch logs.

11 **Response:** None served.

12 **RFA No. 41**

13 Admit that a reasonable insurer investigating a vehicle-pedestrian collision cannot determine whether
14 its insured made admissions of fault to a 911 operator by reading the police report alone, without
15 obtaining the 911 audio recording.

16 **Response:** None served.

17 **RFA No. 42**

18 Admit that CSAA Insurance Exchange's claims-handling procedures do not authorize an adjuster
19 to issue a liability denial based solely on a police report and the insured's own account when the
20 police report indicates that additional law enforcement records exist and are retrievable.

21 **Response:** None served.

22 **RFA No. 43**

23 Admit that CSAA Insurance Exchange's reliance on the police report alone, without obtaining
24 the 911 audio recording, body-worn camera footage, or CAD records referenced by or associated
25 with that police report, did not constitute a "thorough, fair and objective investigation" within the
26 meaning of California Code of Regulations, title 10, section 2695.7(d).

27 **Response:** None served.

1 **RFA No. 44**

2 Admit that the phrase “based on available evidence” or “based on our investigation” in a denial
3 letter does not relieve an insurer of the duty to obtain evidence that is reasonably available but has
4 not been requested.

5 **Response:** None served.

6 **RFA No. 45**

7 Admit that CSAA Insurance Exchange has no internal documentation showing that any adjuster,
8 supervisor, or manager reviewed the CAD number on the police report and made a documented
9 decision that no additional records needed to be obtained before issuing the February 25, 2021
10 denial letter.

11 **Response:** None served.

12 **RFA No. 46**

13 Admit that if CSAA Insurance Exchange had obtained the 911 audio recording prior to February
14 25, 2021, it would have discovered that its insured, Subhi Abdelhalim, stated to the 911 operator,
15 verbatim as described in the official 911 transcript: (a) “He cross from me, and he’s barely hitting
16 anything, but I’m calling for him,” and (b) “BOOM! I just hit him. HIT HIM. There was barely
17 anything. I’m calling the 911 for him.”

18 **Response:** None served.

19 **RFA No. 47**

20 Admit that if CSAA Insurance Exchange had obtained the body-worn camera footage prior to
21 February 25, 2021, it would have discovered that an independent eyewitness, Dustin Rosemond,
22 made statements to the responding officer (Officer Thompson) to the effect that he witnessed the
23 van come around the corner and strike the pedestrian.

24 **Response:** None served.

25 **RFA No. 48**

26 Admit that a liability determination that its insured was “not liable” could not have been issued
27 in good faith if CSAA had first listened to its own insured’s 911 admission that he struck the
28 pedestrian.

1 **Response:** None served.

2 **RFA No. 49**

3 Admit that CSAA Insurance Exchange could not have truthfully represented that its investigation
4 was “concluded” if, at the time of that representation, it had not obtained or reviewed the 911 audio
5 recording, body-worn camera footage, or CAD records associated with the police report in its file.

6 **Response:** None served.

7 **RFA No. 50**

8 Admit that Plaintiff’s counsel (Dolan Law Firm) obtained the 911 audio recording through a rou-
9 tine California Public Records Act request in less than three months after the collision, demon-
10 strating that the recording was readily obtainable by any party who requested it.

11 **Response:** None served.

12 **SET FIVE — SPECIAL INTERROGATORIES TO CSAA**

13 **SROG No. 26**

14 Identify the specific information in the police report relating to the February 4, 2021 collision
15 that CSAA Insurance Exchange relied upon in determining that its insured, Subhi Abdelhalim,
16 was “not liable,” and for each piece of information, state whether CSAA took any steps to verify,
17 corroborate, or supplement it with independent evidence.

18 **Response:** None served.

19 **SROG No. 27**

20 Identify every source of information – other than the police report and the insured’s own account –
21 that CSAA Insurance Exchange obtained, reviewed, or considered before issuing the February 25,
22 2021 denial letter. If no other source was obtained, reviewed, or considered, so state.

23 **Response:** None served.

24 **SROG No. 28**

25 State whether CSAA Insurance Exchange identified the CAD number on the police report for the
26 February 4, 2021 collision at any time prior to February 25, 2021. If yes, state what actions, if any,
27 were taken in response to identifying that CAD number. If no, explain how the police report was
28 reviewed without identifying the CAD number that appears on its face.

Response: None served.

SROG No. 29

State whether CSAA Insurance Exchange’s adjusters are trained or instructed to use CAD numbers referenced in police reports to retrieve additional law enforcement records, including 911 audio, body-worn camera footage, and dispatch logs. If yes, identify the training materials, policies, or guidelines that provide such instruction. If no, explain why not.

Response: None served.

SROG No. 30

State whether any CSAA Insurance Exchange adjuster, supervisor, or manager made a documented decision that 911 audio, body-worn camera footage, and CAD records did not need to be obtained before issuing the February 25, 2021 denial letter. If yes, identify the person, the date of the decision, and the basis for that decision. If no, state whether the omission of these records from the pre-denial investigation was an oversight, a deliberate choice, or the result of some other circumstance, and describe that circumstance.

Response: None served.

SROG No. 31

State whether CSAA Insurance Exchange’s claims-handling procedures permit an adjuster to issue a liability denial for a vehicle-pedestrian collision claim based solely on the insured’s account and a police report, without obtaining 911 audio, body-worn camera footage, or other contemporaneous statement evidence, when the police report indicates that law enforcement was dispatched and responded to the scene. If yes, identify the policy or procedure that permits it and the person who approved that policy.

Response: None served.

SROG No. 32

If CSAA Insurance Exchange contends that the police report alone constituted a sufficient basis for determining that its insured was “not liable” for the February 4, 2021 collision, identify every fact, document, and legal authority supporting that contention, and explain how that contention is consistent with the requirements of California Code of Regulations, title 10, section 2695.7(d) and

1 Insurance Code section 790.03(h)(3).

2 **Response:** None served.

3 **SROG No. 33**

4 If CSAA Insurance Exchange contends that the police report was adequate to support a liability
5 denial without supplementation by 911 audio, body-worn camera footage, or CAD records, explain
6 how CSAA reconciles that position with the fact that the police report did not contain the insured's
7 admission to the 911 operator that he struck the pedestrian.

8 **Response:** None served.

9 **SROG No. 34**

10 State whether CSAA Insurance Exchange has ever, in any claim other than the February 4, 2021
11 collision, issued a liability denial based solely on a police report without obtaining the 911 audio
12 recording when the police report indicated that law enforcement was dispatched via a 911 call. If
13 yes, identify the approximate number of such claims in the past five years.

14 **Response:** None served.

15 **SROG No. 35**

16 State whether CSAA Insurance Exchange's quality assurance, internal audit, or compliance de-
17 partment has ever flagged, reviewed, or investigated a claim for inadequate investigation based on
18 failure to obtain 911 audio, body-worn camera footage, or CAD records before issuing a denial. If
19 yes, describe each such review and its outcome, including any corrective action taken.

20 **Response:** None served.

Dated: April 28, 2026



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